

BEFORE THE STATE GRIEVANCE BOARD

STATE OF COLORADO

Case No. RG GB DLJUH

STIPULATION AND ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE
TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF
MARGARET E. MALM, M.A., LPC, LICENSE NO. 271
Respondent.

IT IS HEREBY STIPULATED and agreed by and between the
Colorado State Grievance Board ("Board") and Margaret E. Malm,
M.A., LPC ("respondent"), as follows:

1. The Board has jurisdiction over the person of respondent and the subject matter set forth in this stipulation and order.
2. The State Board of Licensed Professional Counselor Examiners granted respondent a license to practice professional counseling in Colorado on October 20, 1990. Respondent has been licensed to practice professional counseling since that date. She holds license number 271.
3. On or about August 26, 1997, the State Grievance Board received information regarding respondent and initiated a complaint against respondent.
4. Following review of the complaint and correspondence from respondent's attorney, the Board referred this matter to the Attorney General's office for action regarding respondent's surrender of her license to practice professional counseling.
5. Respondent understands she has the right to a formal disciplinary hearing, pursuant to C.R.S. §12-43-705, with respect to the complaint against her. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, she waives her right to a hearing; relieves the Board of its burden of proving the facts and conduct contained in the complaint; gives up her right to present a defense by oral and documentary evidence; and gives up her right to cross-examine witnesses. Respondent understands that, pursuant to C.R.S. §12-43-705(5), she has the right to appeal the Board's final order to the Court of Appeals. Respondent further

understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, she waives her right to appeal or otherwise to contest the validity of the final Board order entered pursuant to this stipulation.

6. Respondent desires to resolve this matter by voluntarily surrendering her license to practice professional counseling in Colorado and agreeing to close her practice of psychotherapy without further proceedings in this matter.

7. Respondent hereby freely and voluntarily relinquishes and surrenders her license as a Professional Counselor in the State of Colorado.

8. Without admitting or denying any allegation, respondent enters into this stipulation and order voluntarily, and after being fully advised both as to her right to a hearing and as to the consequences of this stipulation and order.

9. This Board order possesses the same force and effect as an order entered as a result of a formal disciplinary proceeding held pursuant to C.R.S. §§ 12-43-705 and 24-4-105, and it will be considered a revocation of her professional counselors license.

10. No agreement, understanding, representation, or interpretation not contained in this stipulation and order may be used to vary or to contradict its terms.

11. Each provision of this stipulation and order is separate. In the event of litigation involving compliance with the terms of this stipulation and order, the issues will be restricted to those raised by the interested parties; the resolution of those issues will affect only the pertinent parts of the stipulation and order; and the parties will be obligated by the Board-construed or judicially-construed parts of the stipulation and order as if they were part of the original stipulation and order.

12. This stipulation and order shall take effect on acceptance and signature by the Board.

13. This stipulation and order is a public record.


MARGARET E. MALM, M.A., LPC
Respondent

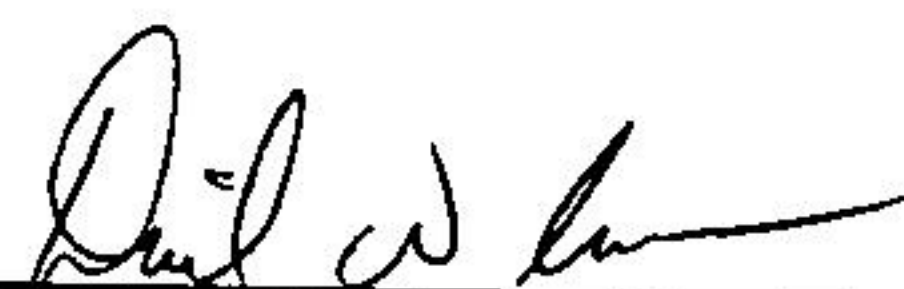
ACCEPTED, SIGNED, AND ORDERED this 27th day of JANUARY,
1998.

COLORADO STATE GRIEVANCE BOARD


DANIEL R. ROBINSON
Board Chair

APPROVED AS TO FORM

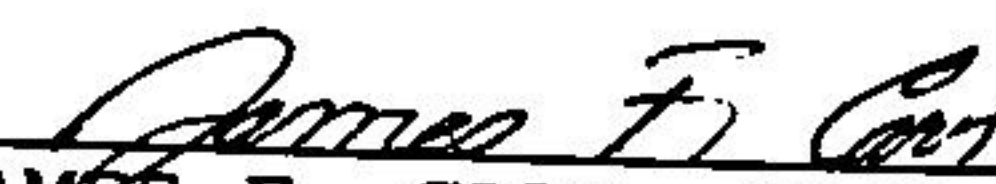
FOR THE RESPONDENT


DANIEL W. CARR

Attorney for Respondent
Margaret E. Malm, M.A., LPC

455 Sherman Street, Suite 300
Denver, Colorado 80203
Telephone: 303/777-3737

FOR THE ATTORNEY GENERAL:


JAMES F. CARR, 9343
Senior Assistant Attorney General
Regulatory Law Section

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Denver, Colorado 80203
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AG Alpha No. RG GB DLJUH
AG File No. RLJC7329

DISTRICT COURT, JEFFERSON COUNTY, COLORADO

Case No.

98CV 265

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STIPULATED ORDER FOR INJUNCTION AND FINAL JUDGMENT
BY CONSENT OF THE PARTIES

OFFICE OF THE
ATTORNEY GENERAL

FILED

COMBINED COURT
JEFFERSON COUNTY, CO

THE PEOPLE OF THE STATE OF COLORADO
Ex rel. Gale A. Norton, Attorney General,

Plaintiff,

v.

MARGARET E. MALM, M.A., LPC

Defendant.

Plaintiff Colorado State Grievance Board ("Board" or "plaintiff") filed its complaint in this matter seeking an injunction against defendant, Margaret E. Malm, M.A., LPC ("defendant" or "Malm") pursuant to C.R.S. §12-43-708. Defendant has appeared.

Plaintiff and defendant have consented to the entry of this order for injunction and judgment by consent of the parties. They have done so without trial or adjudication of any issue of fact or law; without this order constituting evidence against or admission by any party with respect to any issue; without defendant either admitting or denying that any of the allegations and grounds contained in the complaint are true; and without waiver by defendant of any defense to the complaint except with respect to the jurisdiction of this Court.

NOW, THEREFORE, upon the basis of the consent of the parties and being duly advised in the premises, before any testimony has been taken in this matter, and without trial or adjudication of any issue of fact or law in this matter, it is hereby

ORDERED, ADJUDGED, AND DECREED AS FOLLOWS:

1. This Court has jurisdiction over the subject matter of this action and over the parties to this action. The complaint alleges claims for relief against defendant under C.R.S. §12-43-708.

2. The provisions of this Order apply to the defendant.

3. As used in this Order, the term "psychotherapy" has the

same meaning and scope as C.R.S. §12-43-201(9) and the term "unlicensed psychotherapist" has the same meaning and scope as C.R.S. §12-43-201(10).

4. Defendant is hereby immediately enjoined, commencing on the date that the Court signs this stipulated order for injunction and judgment by consent of the parties, from practicing psychotherapy in the state of Colorado.

5. Defendant may not practice psychotherapy or engage in any activity determined by the Board under the laws of the state of Colorado to constitute psychotherapy, as defined in C.R.S. §12-43-201(9).

6. No agreement, understanding, representation, or interpretation not contained in this Order may be used to vary or to contradict its terms.

7. Each party shall bear its own costs, shall pay its own witness fees, and shall pay its own attorney fees.

8. Each provision of this Order is separate. In the event of litigation involving compliance with the terms of this Order, the issues will be restricted to those raised by the interested parties; the resolution of those issues will affect only the pertinent parts of the Order; and the parties will be obligated by the judicially-construed parts of the Order as if they were part of the original Order.

9. Defendant's failure to comply with this Order may be punished as contempt of Court.

10. The Court retains jurisdiction over this matter.

DATED this 3rd day of February, 1998.

ICMAN
DISTRICT COURT JUDGE

The parties hereby stipulate, agree, and consent to the terms and conditions of this Order and to its entry. By their signatures, the parties jointly move this Honorable Court to adopt this stipulated order in its entirety as an Order of this Court.

DEFENDANT:

PLAINTIFF, COLORADO STATE
GRIEVANCE BOARD:


MARGARET E. MALM, M.A., LPC

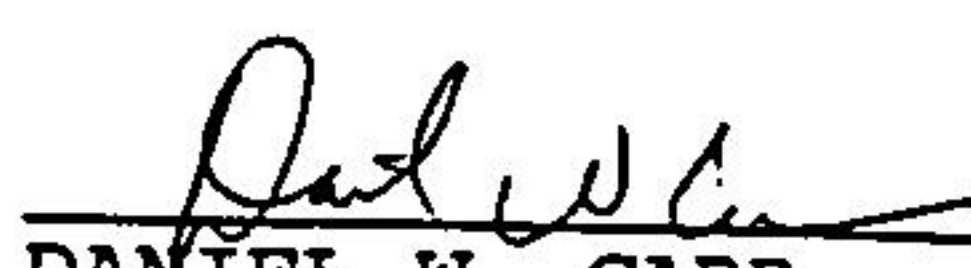

By: Daniel R. Robinson
Board Chair

Dated: _____

Dated: JANUARY 27, 1998

APPROVED AS TO FORM

FOR THE DEFENDANT:


DANIEL W. CARR

Attorney for Defendant
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